

The Debts Recovery Appellate Tribunal (Procedure For Appointment As Chairperson Of The Appellate Tribunal) Rules, 1998

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The Debts Recovery Appellate Tribunal (Procedure For Appointment As Chairperson Of The Appellate Tribunal) Rules, 1998

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The Debts Recovery Appellate Tribunal (Procedure For Appointment As Chairperson Of The Appellate Tribunal) Rules, 1998

Rule

THE-DEBTS-RECOVERY-APPELLATE-TRIBUNAL-PROCEDURE-FOR-APPOINTMENT-AS-CHAIRPERSON-OF-THE-APPELLATE-TRIBUNAL-RULES-1998 of 1998

Published on 19 January 1998

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The Debts Recovery Appellate Tribunal (Procedure For Appointment As Chairperson Of The Appellate Tribunal) Rules, 1998

Published vide G.S.R. 31(E), dated 19.1.1998, published in the Gazette of India, Extraordinary, Part II, Section 3(i), dated 19.1.1998.

21.

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In exercise of the powers conferred by section 4 read with clause (e) of sub-section (2) of section 36 of the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (

51 of 1993

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Debts Recovery Appellate Tribunal (Procedure for Appointment as [Chairperson] of the Appellate Tribunal) Rules, 1998.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (

51 of 1993

);

(b)

"Appellate Tribunal" means the Debts Recovery Appellate Tribunal established under section 8 of the Act;

(c)

"[Chairperson]" means a person appointed [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

of an Appellate Tribunal under section 9 of the Act;

(d)

"Reserve Bank" means the Reserve Bank of India constituted under section 3 of the Reserve Bank of India Act, 1934 (

2 of 1934

);

(e)

all other words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Method of appointment under section 9 of the Act .-(1) For the purpose of appointment to the post of a [Chairperson], there shall be a Selection Committee consisting of-

(i)

The Chief Justice of India or a Judge of the Supreme Court of India as nominated by the Chief Justice of India;

(ii)

the Secretary to the Government of India in the Ministry of Finance (Department of Economic Affairs);

(iii)

the Secretary to the Government of India in the Ministry of Law and Justice;

(iv)

the Governor of the Reserve Bank or the Deputy Governor of the Reserve Bank nominated by the Governor of the Reserve Bank;

(v)

[Secretary or Additional Secretary to the Government of India in the Ministry of Finance, Department of Financial Services.]

[Substituted by GSR 224(E) dated 18-3-2011 (w.e.f. 19.1.1998)]

(2)

The Chief Justice of India or the Judge of the Supreme Court shall be the Chairman of the Selection Committee.

(3)

Any three members of the Committee including the Chairman shall form a quorum for meeting of the Committee.

(4)

[The Selection Committee may devise its own procedure including interview for selection and appointment of

Chairperson:

Provided that the procedure of interview shall not apply in case of a Judge of a High Court nominated by the Chief Justice of such High Court.

(5)

The Selection Committee shall recommend persons for appointment of Chairperson,-

(i)

from amongst the persons from the list of candidates prepared by the Ministry of Finance after inviting necessary applications; and

(ii)

from amongst the Judges of High Court nominated by the Chief Justice of such High Court.]

(6)

The Central Government shall on the basis of the recommendations of the Selection Committee make a list of persons selected for appointment as [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

and the said list shall be valid for a period of two years. The appointment of a [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

shall be made from the list so prepared.

4.

Medical fitness .-No person shall be appointed as a [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for sub-Rules (4) and (5) (w.e.f. 2-8-2000).]

unless he is declared medically fit by a Medical Board to be constituted by the Central Government for the purpose unless he has already been declared fit by an equivalent authority.

5.

Intepretation .-If any question arises relating to the interpretation of these rules the same shall be referred to the Central Government for its decision.

6.

Saving .-Nothing in these rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, Scheduled Tribes, other Backward Classes, ex-servicemen and other special categories of persons, in accordance with the orders issued by the Central Government from time to time in this regard.

7.

Oaths of office and secrecy .-Every person appointed to the [Chairperson] under section 9 of the Act shall, before entering upon his office, make and subscribe an oath of office and secrecy in the Forms annexed to these rules.

Annexure

FORM I

(See rule 7)

Form Of Oath Of Office For [Chairperson] Presiding Officer Of The Debt Recovery Appellate Tribunal

"I,(Name of the [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

), having been appointed as [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

do solemnly affirm/do swear in the name of God that I will faithfully and conscientiously discharge my duties as [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

to the best of my ability, knowledge and judgement, without fear or favour, affection or ill will."

NAME OF THE [CHAIRPERSON]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for "Presiding Officer" (w.e.f. 2-8-2000).]

DEBTS RECOVERY APPELLATE TRIBUNAL

FORM-II

(See rule 7)

Form Of Oath Of Secrecy For [Chairperson]

[Substituted By G.S.R. 645(E), Dated 2-8-2000, For &Quot; Presiding Officer&Quot; (W.E.F. 2-8-2000).]

Of The Debt Recovery Appellate Tribunal

I,...(Name of the [Chairperson]), having been appointed as [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

do solemnly affirm/do swear in the name of God that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

of said Debts Recovery Appellate Tribunal except as may be required for the due discharge of my duties as the [Chairperson]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for " Presiding Officer" (w.e.f. 2-8-2000).]

."

NAME OF THE [CHAIRPERSON]

[Substituted by G.S.R. 645(E), dated 2-8-2000, for "Presiding Officer" (w.e.f. 2-8-2000).]

DEBT RECOVERY APPELLATE TRIBUNAL

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